

		California State Bar or is otherwise authorized to perform the particular activity pursuant to statute or court rule. Petitioner shall submit a revised proposed final order consistent with this ruling and shall give notice.
8.	2019-1102209 McDonnell vs. Ford Motor Company	Order to Show Cause re: Dismissal on Settled Case Motion for Attorney Fees is off calendar pursuant to Notice of Withdrawal filed.
9.	2025-1516057 Eslami vs. Luna	Case Management Conference The general demurrer by Defendant Jessica Luna (“Luna”) to the First Amended Complaint (“Plaintiff”) filed by Plaintiff Naghi Eslami (“Plaintiff”) is sustained with leave to amend. The Court notes Luna demurred to the FAC and not individually to each cause of action. As such, if a demurrer is overruled as to any cause of action, then the demurrer to the entire FAC shall be overruled. (<i>See, Warren v. Atchison, T. & S. F. Ry. Co.</i> (1971) 19 Cal.App.3d 24, 36.) Plaintiff alleges five causes of action in Plaintiff’s FAC. Plaintiff did not allege sufficient facts to state each of the five causes of action. “The procedural requirements for claim presentation are prerequisites to litigation against a local public entity or employee thereof based not only on tort liability, but on any claim for ‘money or damages.’ (§ 905.) A cause of action that is subject to the statutory claim procedure must allege either that the plaintiff complied with the claims presentation requirement, or that a recognized exception or excuse for noncompliance exists. A plaintiff may allege compliance with the claims requirements by including a general allegation that he or she timely complied with the claims statute. (<i>Perez v. Golden Empire Transit Dist.</i> (2012) 209 Cal.App.4th 1228, 1236 [147 Cal.Rptr.3d 709].) If the plaintiff fails to include the necessary allegations, the complaint is subject to attack by demurrer. (<i>State of California v. Superior Court (Bodde)</i>, <i>supra</i>, 32 Cal.4th at p. 1239, 13 Cal.Rptr.3d 534, 90 P.3d 116.)” (<i>Gong v. City of Rosemead</i> (2014) 226 Cal.App.4th 363, 374.) “In order to comply with the claim presentation requirement, the facts alleged in a complaint filed in the trial court supporting a cause of action against a government employee, including the damages alleged to have been suffered by the claimant, must be

consistent with the facts contained within the government claim. (See *Williams v. Southern California Gas Co.* (2009) 176 Cal.App.4th 591, 597-598 [98 Cal.Rptr.3d 258].) (*Gong v. City of Rosemead*, 226 Cal.App.4th at 376.)

Under the Government Tort Claims Act, “all governmental tort liability is based on statute” and “statutory causes of action must be pleaded with particularity.” (*Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795.)

Our California Supreme Court has held:

Section 905 requires the presentation of “all claims for money or damages against local public entities,” subject to exceptions not relevant here. Claims for personal injury and property damage must be presented within six months after accrual; all other claims must be presented within a year. (§ 911.2.) “[N]o suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented ... until a written claim therefor has been presented to the public entity and has been acted upon ... or has been deemed to have been rejected....” (§ 945.4.) “Thus, under these statutes, failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity.” (*State of California v. Superior Court (Bodde)*, *supra*, 32 Cal.4th at p. 1239, 13 Cal.Rptr.3d 534, 90 P.3d 116.) (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 737-738.)

“A plaintiff suing the state or a local public entity must allege facts demonstrating either compliance with the claim presentation requirement or an excuse for noncompliance as an essential element of the cause of action. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1243-1244, 13 Cal.Rptr.3d 534, 90 P.3d 116; *Wood v. Riverside General Hospital* (1994) 25 Cal.App.4th 1113, 1119, 31 Cal.Rptr.2d 8.) The plaintiff must prove compliance with the claim presentation requirement, or establish an excuse for noncompliance, to establish the defendant’s liability. (*Del Real v. City of Riverside* (2002) 95 Cal.App.4th 761, 767, 115 Cal.Rptr.2d 705.)” (*Ovando v. County of Los Angeles* (2008) 159 Cal.App.4th 42, 65.)

Although the “Claims Act generally applies only to claims for money or damages, and not to actions for declaratory relief,” the exception does not apply “where the demand for nonmonetary relief is merely incidental or ancillary to a prayer for damages.” (*Hart v. Alameda County* (1999) 76 Cal.App.4th 766, 782.) However, a claimant does not need to comply with the claims requirement when seeking

		injunctive relief. (<i>Minsky v. City of Los Angeles</i> (1974) 11 Cal.3d 113, 121.) Plaintiff's FAC alleges the following five causes of action against Luna: following causes of action: violation of 42 U.S.C. section 1983; intentional misrepresentation, concealment, and deceit; conspiracy to defraud; declaratory relief; and injunctive relief. Plaintiff's FAC seeks general damages, special damages, statutory damages, and statutory damages against Luna. (FAC, 12:20-22.) Plaintiff did not allege compliance with the claims presentation requirement. As such, Plaintiff did not allege sufficient facts to state these three causes of action. Luna's declaratory relief cause of action arises out of the same alleged misconduct as the first three causes of action and are merely incidental or ancillary to the prayer for damages. Plaintiff did not allege any facts to show compliance with the claim presentation requirement. Accordingly, Plaintiff did not allege sufficient facts to state this cause of action. "Injunctive relief is a remedy and not, in itself, a cause of action." (<i>McDowell v. Watson</i> (1997) 59 Cal.App.4th 1155, 1159.) Accordingly, Plaintiff did not allege sufficient facts to seek injunctive relief. Because Plaintiff did not allege sufficient facts to state the five causes of action alleged in Plaintiff's FAC, Luna's demurrer is sustained with 15 days leave to amend. In light of this ruling, the Court need not reach the merits of the other grounds of Luna's demurrer. Luna shall give notice.
10.	2024-1444310 KDG Investments, Inc. vs. Liu	Case Management Conference Defendant Di Liu's ("Defendant") Demurrer to Plaintiff KDG Investments Inc.'s ("Plaintiff") Second Amended Complaint is overruled. Defendant's request for judicial notice is granted. Defendant demurs to the only cause of action, intentional interference with prospective economic advantage, alleged in Plaintiffs' SAC. "The elements of intentional interference with prospective economic advantage have been stated as follows: '(1) an economic relationship between the plaintiff and some third party, with the probability of